

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 8, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 8, 2024, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against MONTE HERMOSO, S.A. (hereinafter, the respondent) for not having duly addressed the right of access to the medical history of her deceased aunt, Ms. B.B.B.

The complainant sent a burofax to the respondent on November 22, 2023, requesting various documents regarding her deceased aunt, a former resident of the respondent:

"1. Please provide a copy of the entire medical history of B.B.B., complete - chronological - for the medical care provided from the onset of pain until her referral to the hospital and regarding all medical assistance performed since then; according to Article 15.2 of the aforementioned Law 41/2002, of November 14, the medical history must contain at least: documentation related to the clinical-statistical sheet, the emergency report if available, the anamnesis and physical examination, the evolution, medical orders and medical reports, interconsultation sheets if available, reports of complementary examinations, informed consent, anesthesia report, operating room report, pathological anatomy report, nursing care evolution and planning, therapeutic nursing application, vital signs chart, prosthetic models, and discharge clinical report if available.

2. Please provide a copy of all objective and complementary medical tests that have been performed (radiological tests, laboratory tests, electrocardiograms, blood gas analyses, computed axial tomography, transesophageal echocardiograms, aortographies, magnetic resonance imaging, ultrasounds, Doppler echography, etc., and other clinical documents that are related and contain personal health data), requesting all tests performed.

3. The names and professional registration numbers of the responsible physicians who attended to her must also be identified."

She received a response dated December 22, 2023, in which the respondent indicated that "(...) it is a nursing home that is included in the socio-health and non-health activity, the latter being the responsibility of hospitals and health centers or specialties. It is not a healthcare center, so we do not have a medical history as such for our residents since the clinical information we have is what is provided to us by family members at the time of admission and by healthcare professionals from the reference hospitals when interconsultations or hospital referrals are made for emergencies; those reports were provided to you at that time."

Furthermore, the respondent lists "(...) medical reports delivered by the family at the time of admission: April 28, 2023 (...)" and indicates that "(...) we do not have any type of diagnostic tests that you requested in your writing, such as X-rays, Doppler echography, blood gas analysis, magnetic resonance imaging, tomography, etc." Additionally, it adds that "In accordance with Article 18.3 of the aforementioned Law 41/2002, of November 14, I inform you that it is not possible to provide you with the data and registration numbers of the professionals involved in the care of your aunt."

The complainant submits a copy of her request, the response received, and the complaint sheet submitted to the respondent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that "(...) the rights of access, rectification, or deletion have not been exercised by the complainant."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on April 5, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed

to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any allegations they deemed appropriate, but no allegations were made within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions...

3/13

in the Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this transfer did not satisfy the claims of the complainant. Consequently, on April 5, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

C/ Jorge Juan, 6

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

C/ Jorge Juan, 6

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28001 – Madrid

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Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data in question, the recipients or categories of recipients to whom the data may be communicated, the expected duration or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

The right of access in relation to medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which establishes the basic regulations governing Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal wording of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record may not be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners shall only grant access to the medical records of deceased patients to persons linked to them, for family reasons or de facto, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical record motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided."

In this regard, it is important to highlight Article 15 of the LAP, which outlines the minimum content of the medical record:

"1. The medical record shall include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their healthcare processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical record shall be to facilitate healthcare, documenting all those data that, in the medical judgment, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record shall be as follows:

a) The documentation related to the clinical-statistical sheet.

b) The admission authorization.

c) The emergency report.

d) The anamnesis and physical examination.

e) The evolution.

f) The medical orders.

g) The consultation sheet.

h) The reports of complementary examinations.

i) The informed consent.

j) The anesthesia report.

k) The operating room or delivery record.

l) The pathological anatomy report.

m) The nursing care evolution and planning.

n) The therapeutic application of nursing.

ñ) The vital signs chart.

o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), n) and o) shall only be required in the completion of the medical record when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical record, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical record shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each healthcare process."

Regarding the retention of the medical record, Article 17 of the LAP, in its points 1 and 5, states:

"1. Health centers have the obligation to retain clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the proper care of the patient for the time appropriate to each case and, at a minimum, five years from the date of discharge from each healthcare process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management

and custody of the healthcare documentation they generate."

C/ Jorge Juan, 6

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28001 – Madrid

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7/13

V

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the claimant requested from the respondent various data related to her deceased aunt, a complete medical history, "(...) a copy of all objective and complementary medical tests that have been performed (radiological tests, analyses, electrocardiograms, ... and other clinical documents that are related and contain personal health data), requiring all tests performed" as well as identification of the responsible doctors by name and surname and professional registration number who attended to her, and that the respondent replied indicating that it is a nursing home that is encompassed within social and health activity and non-health activity, therefore, as it is not a healthcare center "(...) we do not have a medical history as such for our residents since the clinical information we have is what is provided to us by family members at the time of admission and by healthcare professionals from the reference hospitals when consultations or hospital referrals are made due to emergencies, said reports were delivered to you at the time."

In the response to the transfer made by this Agency, the respondent states that the claimant has not requested any exercise of data protection rights, and that it is unaware of the reasons that have motivated this incident. However, from the documentation provided by the claimant, the existence of the signed request sent via burofax is evident, as well as the response to the aforementioned request by the respondent. These documents were also incorporated along with the transfer sent by this authority, which demonstrates that it was aware of the request submitted.

Before addressing the substance of the matter, it is necessary to take into account the Guidelines 1/2022 of the European Data Protection Board (hereinafter, EDPB), adopted on March 28, 2023, which approve the Application Guide of Article 15 of the GDPR, regarding the Right of Access of the Data Subject, which indicates that

"80. Although the right of access is generally exercised by data subjects concerning their own data, it is possible for a third party to submit a request on behalf of the data subject. This may apply, among other things, to actions through a representative or legal guardians on behalf of minors, as well as actions through other entities via online portals. In some circumstances, the identity of the person authorized to exercise the right of access, as well as the authorization to act on behalf of the data subject, may require verification, as long as it is appropriate and proportionate (see section 3.3). It should be noted that providing personal data to someone who does not have the right to access them may constitute a breach of personal data security.

(...)

82. While the exercise of the right of access to personal data of deceased persons constitutes another example of access by a third party other than the data subject, Recital 27 specifies that the GDPR does not apply to the data

C/ Jorge Juan, 6

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28001 – Madrid

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8/13

personal data of deceased persons. Therefore, the issue is addressed in national law, and Member States may establish rules regarding the processing of personal data of deceased persons. However, it must be noted that the data may also refer to living third parties, for example, in the context of a request for access to the correspondence of a deceased person. The confidentiality of this data must still be protected."

In this regard, it should be based on the provisions of Recital 27 of the GDPR, which states that "This

Regulation does not apply to the protection of personal data of deceased persons. Member States are competent to establish rules regarding the processing of personal data of these individuals,” as similarly provided in Article 2.2.b) of the LOPDGDD.

Article 3.1 of the LOPDGDD, Data of Deceased Persons, establishes that “1. Persons related to the deceased by family ties or de facto relationships, as well as their heirs, may contact the data controller or processor to request access to the personal data of the deceased and, where appropriate, its rectification or deletion.

As an exception, the individuals referred to in the previous paragraph may not access the data of the deceased, nor request its rectification or deletion, when the deceased person expressly prohibited it or when a law so establishes. This prohibition shall not affect the right of the heirs to access the patrimonial data of the deceased.”

The Supreme Court, in its ruling of 04/03/2024 (Rec. 7418/2022), interprets this regulation considering that “Article 2.2 LOPDGDD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased persons, ‘without prejudice to what is established in Article 3.’ For its part, Article 3.1 LOPDGDD empowers the heir to contact the data controller or processor and request ‘access to the personal data of the deceased’ and ‘where appropriate, its rectification or deletion.’ By virtue of that reference to the laws of the Member States, it is perfectly possible for the rules of the GDPR to apply to the processing of data of deceased persons, as Recital 27 does not prohibit it. In other words, under the provisions of Recital 27 of the GDPR, the rules of the Regulation apply to the protection of personal data of living persons, but a Member State of the EU may enact rules regarding the processing of data of deceased persons, and that processing may be subject to the same rules that apply to living persons, among which is the GDPR. Advancing along this line, we have seen that Article 2.2 LOPDGDD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased persons, ‘without prejudice to what is established in Article 3.’

Following this jurisprudential line, it can be concluded that the regime applicable to the right of access mentioned in Article 3.1 LOPDGDD is the same as that generally contained for the data of natural persons in the aforementioned law. Therefore, Article 3 of the LOPDGDD legitimizes individuals related to the deceased by family ties or de facto relationships and their heirs to request the data controller

C/ Jorge Juan, 6

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28001 – Madrid

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9/13

the access to the personal data of the deceased, under the terms provided in articles 13 of the LOPDGDD and 15 of the RGD and, consequently, with the scope and limits that may be opposed to the exercise of this right.

Therefore, the claiming party has the capacity to request access to the personal data of their deceased aunt.

It is appropriate to apply the provisions of the previously cited Guidelines 1/2022, which indicate that “d). Is the request included within the scope of Article 15?

50.

It should be noted that the RGD does not introduce any formal requirement for individuals requesting access to data. To make the access request, it is sufficient for the requesting individuals to specify that they wish to know what personal data concerning them is processed by the data controller. Therefore, the data controller cannot refuse to provide the data by referring to the lack of indication of the legal basis for the request, especially to the lack of a specific reference to the right of access or to the RGD.

For example, to make a request, it would be enough for the requesting individual to indicate that:

- they wish to obtain access to the personal data concerning them;
- they are exercising their right of access; or
- they wish to know the information concerning them that is processed by the controller.

It should be noted that applicants may not be familiar with the complexities of the RGPD and that it is advisable to be lenient with individuals exercising their right of access, particularly when it is exercised by minors. As previously indicated, in case of doubt, it is recommended that the data controller ask the interested party to specify the object of the request.

e) Do the interested parties wish to access all or part of the information processed about them?
51.

Furthermore, the data controller must evaluate whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the RGPD, made by the interested parties, must be clear and unequivocal. For example, if the interested parties literally require "information about the data processed in relation to them," the data controller must assume that the interested parties intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the RGPD. Such a request should not be interpreted as meaning that the interested parties wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be

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28001 – Madrid

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10/13

different, for example, when the data subjects wish, regarding the specified data, to have access to the source or origin of the personal data or to the specified storage period. In such cases, the data controller may limit their response to the specific information requested.

3.1.2 Form of the request

52.

As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, there are, in principle, no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

Furthermore, the Judgment of the Court of Justice (Third Chamber) of May 7, 2009 [CJEU Rijkeboer 7.5.2009 — Case C-553/07] indicates that

“51 The aforementioned right of access is essential for the data subject to exercise the rights provided for in Article 12, letters b) and c) of the Directive, namely, where applicable, when the processing does not comply with its provisions, to obtain from the data controller the rectification, erasure, or blocking of the data [letter b)], or to notify third parties to whom the data have been communicated of any rectification, erasure, or blocking carried out, unless this proves impossible or involves a disproportionate effort [letter c)].

52 The right of access is also a necessary condition for the data subject to exercise the right to object to the processing of their personal data, as provided for in Article 14 of the Directive, as it is for the right to seek compensation for damages suffered, as provided for in Articles 22 and 23 thereof.”

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023 states:

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation),

must be interpreted as meaning that

the right to obtain from the data controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized that the rights and freedoms of third parties must be taken into account in

this regard.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679

C/ Jorge Juan, 6

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28001 – Madrid

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11/13

must be interpreted in the sense that the concept of "information" it encompasses refers exclusively to the personal data for which the data controller must provide a copy in accordance with the first sentence of that section."

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claimant has exercised the right of access regarding the personal data of her deceased aunt, and the respondent must provide the claimant with her right of access under the terms set forth in the GDPR. As a consequence of the above, in this case, although the claimant requests access to the medical history of the deceased and the respondent states that it is not a healthcare center and therefore does not have a medical history as such, the truth is that the respondent processes health or medical personal data of the deceased person.

The respondent indicates in the service offer it provides in its residences that it has daily medical assistance, which would imply certain records or notes of such assistance, so those data, which would be processed by the respondent, should be provided, or in case they have not been recorded, a reasoned denial should be issued.

The response from the respondent indicating that the data it has are those provided by the family and those provided after the medical assistance of which the claimant is also aware cannot be considered valid as fulfillment of the right of access, according to the provisions of Article 15 of the GDPR:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed, and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on the administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others."

Consequently, since it is not established that the respondent has provided the claimant with the

specific and concrete data it possesses, it is appropriate to uphold the claim that led to this procedure. In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge MONTE HERMOSO, S.A. with NIF A28210771, to provide the claimant with a certification addressing the requested right within ten working days following the notification of this resolution, in accordance with the provisions set forth in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to MONTE HERMOSO, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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28001 – Madrid

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13/13

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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